

To: Public and Constitutional Law (Section C) Students
From: Kate Glover Berger
Date: May 2023
Re: April Exam Feedback

I was so impressed with the work and thought that was reflected in your April exams! The growth and development in both your knowledge and understanding of public and constitutional law, as well as your skills of analysis and communication, were obvious. Indeed, they leapt off the screen. It was so heartwarming for me to see. I truly enjoyed reading your exams. Thank you for all of your preparation and sharing with me some of what you've learned this year.

This memo is intended to offer some general feedback on the April exam and some additional insight into the marking process. Please read this memo in conjunction with the marked copy of your exam. I hope that together, this memo and your exam will provide you with meaningful feedback on your exam answers and the grade that you received in this course. Further, all of the general comments on legal analysis, strengths, and opportunities for improvement set out in the feedback memo about the December exam remains entirely relevant in relation to this exam and going forward. I am, of course, very happy to chat further about anything course and/or grade-related, and to go over your exam with you if that would be helpful. Feedback on your work is a vital part of the learning process in any context and certainly in law school. As always, the feedback in this memo and the written comments on your exam offer suggestions for future work. Please don't hesitate to reach out anytime for further discussion or clarification about your exam, work in this course, or approaches to law-related work more generally. I will post a Calendly link with meeting times on our course announcements page.

Each exam has three numbers in the top righthand corner of the first page (or first content page). Each number represents your score on the three components of the exam: the first is out of 20 (multiple choice), the second out of 30 (the first question in relation to the fact pattern), and the third is out of 50 (the second question in relation to the fact pattern). The total of these three numbers is circled on your exam and represents your score on the exam (out of 100).

In addition to the comments and numbers you see on the exam, you will also see a number of symbols and markings. These are the same as those used on the December quiz (and are my standardized marking symbols). As a reminder:

- A check mark means "good!", "that's right!" and/or "yes!".
- An asterisk (*) beside the points awarded for any particular question indicates that the response was on the border between the mark given and one mark lower. In such borderline situations, I always assign the higher point value.

- A vertical line beside some portion of text is questioning its relevance to answering the question and the analysis in your answer as a whole.
- A horizontal line underneath text or a circle around text indicates that the text is questionable, inaccurate, unclear and/or incomplete in some way.
- A '^' and a horizontal line after some text indicates that the idea expressed therein needs further explanation to be complete.
- A set of parentheses after some text indicates that a source was needed and should have been included to support the claim being made.

The remainder of this memo sets out some general observations about the exam as a whole, as well as describing general expectations for 'good' answers. Following much reflection, I have not included sample strong answers for this exam and will not be doing so. There was such variety in the form, format, and approach of strong and excellent answers on this exam. I want to avoid any suggestion that there is a "best" way to answer a question and avoid contributing to the (inaccurate) narrative that exam answers should look a particular way or conform to one ideal. Rather, on everyone's exam, where there were opportunities for improvement (and there always are), I sought to indicate how to strengthen the answer in the feedback. Further, again, if you would like to chat in greater detail about approaches to legal analysis and/or exam answers, I'd be happy to do so.

GRADE DISTRIBUTION AND CALCULATION

As I said above, I was genuinely impressed with the overall performance on the April exam. Before I begin to mark exams for any course, I read about two-thirds of them in order to get a sense of any problems with the exam itself or the question drafting; to assess whether the exam was fair given the time available; and to recalibrate my original expectations, if necessary, in light of what was submitted. In my initial review of the submitted April exams in this course, I was immediately struck by the quality of the answers provided. They truly reflected the tremendous learning that you have done over the course of the year and even over the course of the second semester.

As is always the case in a class of this size, again like the December exam, the April exam grades fell along a general expected curve. The average on the exam was 71/100. The highest grade on the exam was 84.5/100, which was achieved by two students. There were no failures.

To calculate your final grades, your exam score (out of 100) was converted to a point value out of 60 (for those of you who did not complete the optional assignment) or out of 25 (for those of you who did complete the optional assignment). That point value was then added to your scores on the other graded components in the class (Fall exercise (/15), December exam (/25), Optional assignment (/35, for those who completed it). This produces a total point value out of 100. As you might know (but are likely still figuring out), the Osgoode grading profile was then applied to these

grade totals (and not to any individual component in the course). According to that profile, in a course of more than 30 students, 10-20% of the class must receive A/A+, 55-65% of the class must receive B/B+, 15-25% of the class must receive C/C+, and 0-10% of the class must receive D/D+/F. For our class of 72 students, this means that 7-14 students must receive A/A+, 40-46 students must receive B/B+, 8-18 students must receive C/C+, and 0-7 students must receive D/D+/F. As is always my approach, I sought to maximize the A and B range grades, and minimize the C, D, and F range grades to the extent possible given the total score distributions in the course. In our class, this ultimately lead to a final profile of: 14 students received A/A+, 46 students received B/B+, 12 students received C/C+, and no students received D or F grades.

EXAM FEEDBACK: MULTIPLE CHOICE SECTION

In Part 1 of the exam, you were asked to answer ten of the twelve available questions. Each question was worth 2 marks. As the instructions indicated, for those of you who answered more than ten questions, only your first ten answers counted towards your exam score. Further, as indicated in the instructions, no additional points were earned for explanations of your answers.

The answers to the multiple choice questions were:

- | | |
|----------|---------|
| 1. FALSE | 7. A |
| 2. C | 8. A |
| 3. D | 9. TRUE |
| 4. FALSE | 10. E |
| 5. A | 11. E |
| 6. C | 12. E |

When marking, I tracked the incorrect answers given in order to determine if any of the questions may have been drafted ambiguously or with unintended errors. I did not detect any such problems needing to be addressed. The question that was answered incorrectly most often was question 8, which asked:

Given your expertise, a friend asks you to review their notes on section 7 of the *Canadian Charter of Rights and Freedoms* to spot any errors. Your friend indicates that they have proofread the notes carefully and believe there are no lingering errors.

Which of the following statements from your friend's notes contains an error?

- A statute that is overbroad or arbitrary is a breach of section 7.
- A limit on section 7 rights can be justified under section 1 of the *Charter*.
- As established in *Carter v Canada*, 2015 SCC 5, the right to life in section 7 is engaged not only when a law or state action causes death but also when a law or state action increases the risk of death, whether directly or indirectly.
- There are no errors in the above statements.

- e. Only (a) and (b) are errors.

Many students chose option 'd' in response to question 8. However, the correct answer was 'a' (i.e. The statement "A statute that is overbroad or arbitrary is a breach of section 7" contains an error). Why? Because in order for a statute or a statutory provision to constitute a limit of section 7 rights, the statute or provision must meet both contingencies of section 7: it must limit the right to life, liberty or security of the answer and that limit must be contrary to the principles of fundamental justice. A statute that is overbroad or arbitrary will be contrary to the principles of fundamental justice. However, before we know if that statute is a breach of section 7, we must also know whether the statute imposes a limit on the right to life, liberty or security of the person. Thus, option 'a' is an incomplete description of criteria that must be met in order to be a breach of section 7.

As always, please do ensure that the marking of this section and the calculation is accurate and reach out with any questions or concerns.

EXAM FEEDBACK: HYPTOHEICAL FACT PATTERN ANALYSIS

In this part of the exam, your answers were assessed on (a) quality of communication and (b) quality of the analysis. As was true on the December exam, strong answers were those that were directly responsive to the question asked, were well-organized in their analysis, clearly identified the relevant legal issues, accurately set out the law, effectively drew on authorities and/or examples to support the claims made, and reached conclusions that were clearly and fully justified in light of the facts and the law. Strong answers showcased your ability to draw analogies between existing cases and the facts of the ISA President's case, and to distinguish cases where appropriate. In addition, strong answers showcased good judgment in assessing the facts and what constitutes a reasonable argument or outcome. These qualities of strong answers were particularly visible in question 1 (on the application of the *Charter*) when you needed to assess the features of Enlightenment Academy's operations to determine whether the requisite threshold of government

control was met. They were also particularly visible when assessing whether Section 21 of Policy 1 constituted a limit of section 2(a) of the *Charter*.

The strongest answers, those that moved from ‘good’ to ‘excellent’ or ‘outstanding’ overall, were those that demonstrated one or more of the following qualities:

- Thoughtful and insightful assessment of the facts in light of the law, principles of public and constitutional law, and the client’s perspective and needs
- Ability to meaningfully draw on broader themes in the law or issues to support or respond to arguments
- Creative arguments (within the bounds of relevance and plausibility)
- Obvious comfort using and applying the relevant analytical frameworks
- Keen ability to identify and grapple with uncertainty in the law, facts, or application of the law to the facts
- Excellence in written communication
- Independent thought and judgment (e.g. showing own reflections on the materials in light of readings, lectures, and class discussions)
- Attention to meaningful detail in the authorities and the facts
- Clear and persuasive explanation of why certain missing information was important or needed to reach more definitive conclusions

With those general observations, let me offer some specific comments on the exam questions.

Part 2, Question 1 (30 marks)

Question 1 asked: “Does the *Canadian Charter of Rights and Freedoms* apply to Enlightenment Academy’s enactment of Section 21 of Policy 1?”

For this question, a “good” answer was expected to:

- Provide legal advice that is clearly written and well-organized.

- Clearly identify the issue (i.e. Does the *Charter* apply to the Academy's enactment of section 21 of Policy 1? Put another way, was the Academy bound by the *Charter* when enacting Policy 1?).
- Consider the facts and chances of success from the ISA's perspective, as set out in the question, and respond directly to the issue/question raised.
- Avoid discussion of irrelevant issues and general description of public and constitutional law.
- Identify the governing *Charter* provision, namely section 32(1)(b) of the *Charter*.
- Indicate understanding of why uncertainty arises on the facts of this case, that is, because it is not obvious whether the Academy is "government" for the purposes section 32(1).
- Demonstrate understanding of the possible outcomes of the analysis, that is, if the Academy is government in nature or under substantial government control, then all of its activities (including the enactment of Policy 1) are subject to the *Charter*; if enactment of the Policy constitutes a government activity carried out by the Academy, then the Academy's enactment of the Policy and the Policy itself would be subject to the *Charter*; and if neither situations is met, then the *Charter* does not apply (*Greater Vancouver Transit Authority*).
- Consider whether the Academy is government in nature, operating under substantial government control, or carrying out a government activity when enacting the Policy, with specific references to the facts and the case law. Given the facts, this analysis will focus in particular on the cases dealing with government control, including *McKinney*, *Harrison*, *Stoffman*, *Douglas College*, and *GVTA*, drawing on the relevant factors to determine whether the *Charter* applies. Further, given the facts and cases, the analysis will consider the relevant features of the

Academy, such as composition of the Academy's Board, the process by which the Board members are chosen, the type of decisions made and power exercised by the Board, and so on.

- Clearly state and explain a conclusion in response to the question (i.e. the *Charter* does or does not apply).

The most common points of constructive feedback on this question dealt with the following:

1. **Only considering supportive authorities:** Many answers to this question only considered either the university line of cases or *Douglas College*, depending on the outcome being presented. Such an approach may intuitively seem persuasive because all of the authorities relied on and facts highlighted point in the same direction. However, failing to address the full state of the law, the full range of relevant authorities, and the competing factors raised in the facts is a *less* persuasive approach. It fails to wrestle with the complete set of issues, facts, and authorities and, as a result, leaves your argument full of holes and your outcome on shaky ground. Legal analysis is much stronger when it identifies and confronts the competing facts and arguments, and assesses the full picture in light of the law.
2. **Listing considerations without then assessing the full picture:** Many answers to this question listed several cases and facts that are relevant to determining whether the *Charter* applies to the Academy and concluded the list with some version of, "Therefore, the *Charter* does [or does not] apply". This approach includes two necessary features of a strong analysis – identification of the relevant facts and authorities and a clearly articulated conclusion. However, it neglects a critical piece of the reasoning – a discussion of the factors together, including an assessment of how the competing factors should be measured against each other in light of the governing law. In other words, the "therefore" must be justified.

3. **Assuming facts that were not consistent with the fact pattern:** Many answers described Enlightenment Academy as a “university” from the outset and applied the university line of cases as a result. But the facts did not justify such an assumption – the Academy was described a “post-secondary institution” that granted both university degrees and college diplomas. It was deliberately constructed as a hybrid institution, hence the uncertainty on the *Charter* application issue. The take-away here is simply to ensure that any inferences you draw or assumptions you make about a fact pattern are supported by and consistent with the facts that are given.
4. **Being insufficiently familiar with the facts:** Many answers based their assessment of the Academy on wrong facts or stated that certain facts were missing when those facts were set out in the fact pattern. Given that you had the fact pattern well in advance of the exam, I was surprised by the frequency with which the facts were stated and assessed incorrectly. Here, the take-away is simply to ensure that you read the facts carefully and become familiar with them to the extent that is possible. In a short timed exam scenario, misreadings of the facts is understandable and inevitable. When you have the facts for some time in advance of the exam, it is expected that everyone will be working with an accurate knowledge of the facts that are expressly set out in the fact pattern.

Part 2, Question 2 (50 marks)

Question 2 asked: “Assuming the *Canadian Charter of Rights and Freedoms* applies, could the President of the ISA successfully challenge the constitutionality of section 21 of Policy 1 as an unjustified limit of section 2(a)?”

A good answer to this question was expected to:

- Provide legal advice that was clearly written and well-organized.

- Clearly identify the issue (i.e. Is section 21 of Policy 1 an unjustified limit of section 2(a) of the *Charter*?)
- Consider the facts and chances of success from the ISA's perspective, as set out in the question, and offer a final answer to that question.
- Grapple with how the courts would or could consider the dimensions of the case related to Indigenous beliefs and practices, reconciliation, and the personal experience of the members of the Indigenous Students Association as captured in the discussion at the ISA's meeting.
- Avoid discussion of irrelevant issues and general or historical description of the *Charter*, rights of religious freedom, and/or section 1.
- Assume that the *Charter* applies, as instructed by the question, and thus, spend no time addressing the issue.
- Consider whether Section 21 of Policy 1 constitutes a limit of section 2(a) of the *Charter*. A good answer to this question would set out the framework for assessing whether certain state action constitutes a breach of section 2(a), drawing on *Saguenay* and *Amselem*. It would show understanding of the possible issues raised by the facts of the ISA President's case, including whether section 21 had a religious purpose and the relevance of the state's duty of state neutrality. A good analysis would consider these issues by drawing on, at a minimum, *Big M Drug Mart* and *Saguenay*. A good analysis would also draw directly on the facts of the ISA's case and weigh any competing facts and arguments.
- Regardless of the conclusion on the question of whether there has been a breach, a good answer would assume a breach and go on to consider whether the limit on section 2(a) rights is justified under section 1 of the *Charter*. A good answer was expected to consider whether the limit was both "prescribed by law" and "demonstrably justified in a free and democratic society". This would require

consideration of *Greater Vancouver Transit Authority* and the *Oakes* test. Application of the *Oakes* test should reflect the robust section 1 analyses that we see in freedom of religion cases and consider each of the steps of the *Oakes* test regardless of the overall conclusion.

For this question, the most common points of constructive feedback dealt with the following:

1. **Neglecting the duty of state neutrality when determining whether there was a limit on section 2(a) rights:** As explained above, assessing the constitutionality of Section 21 of Policy 1 raises the issue of whether it is consistent with the duty of state neutrality. While the Academy may argue that section 21 is consistent with the duty because it shows no preference for any one religion, the counter-argument is that section 21 disadvantages those with religious commitments, prefers commitments of non-belief, and takes a strong stance on religion through its total prohibition.
2. **Concluding that more information was needed in order to offer any meaningful analysis:** As described above, there was sufficient information to engage in a meaningful discussion of the constitutional issues raised on the facts. While more details will always be of assistance, the facts offered more than enough to identify the issues, identify the relevant law and frameworks that would help to work through those issues, and consider the facts in light of the law and frameworks. Further, whenever an answer indicates that ‘more information is needed’, a good answer would be as specific as possible, noting the specific information required and the impact or role of that information in the analysis.
3. **Re-scoping or re-writing the question:** Question 2 was quite specific and asked you to assess the constitutionality of section 21 of Policy 1 under sections 2(a) and 1 of the *Charter*. Answering this question takes meaningfully analytical effort and time. A good answer would address all parts of the analysis, as set out above. An excellent or outstanding answer would go above and beyond the expectations of ‘good’ not by answering a different question but rather by going deeper in the analysis of the

specific question asked. Thus, assessing the constitutionality of section 21 on the basis of, for example, sections 7 and 15 of the *Charter* did not strengthen an answer and indeed inevitably, tended to diminish the time and space used for the section 2(a) analysis. The same was true for answers that spent significant time on the issue of remedies. This was not something we covered in detail in the course and (accordingly) was not something within the scope of the question. The time spent on remedies would have been better directed at enriching the analysis of the section 2(a) and section 1 analyses.

I hope this feedback is of use to you as you review your exams to understand the grade received and as you look ahead. Again, please do read this memo in conjunction with the feedback on your exam as well as the feedback memo for the December exam, which included more detailed comments on the skills and features of high quality legal analysis. If there is further feedback that would be of use to you, please do not hesitate to reach out. Further, and as always, if you have (either positive or constructive) feedback for me on the course, pedagogy and/or the exam – its expectations, format, design, content, and so on – I certainly welcome it. Knowing what to maintain and what to revise in the course is extremely helpful. My future students, your future colleagues, will benefit so greatly from your reflections.

Thank you again for such a special year. It has been a true honour to be part of your first year of law school and to witness such tremendous learning. I am excited for all that is to come for each of you and I very much hope to have the chance to work with each of you again!

Wishing you a very happy summer,

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